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Commercial Credit Application

Equipment Share.com Inc
5710 Bull Run Drive, Columbia MO 65201
Tel (573) 299-5222 Sales Rep:

CUSTOMER INFORMATION

Business Legal Name or Name of Applicant		DBA	
Billing Address (Street, City, State, Zip)			
Physical Address (if different than billing)			
Phone	Time in Business		Nature of Business
Federal Tax ID	State of Organization	Dun & Bradstreet #	Gross Annual Revenue
Business Type: ☐ Sole Prop ☐ Corp ☐ LLC ☐ Partnership ☐ Other:		Sales Tax Exempt? ☐ Yes ☐ No	
Contact Name	Email	Phone	
Has this company, its owners, or officers ever filed for bankruptcy? ☐ Yes ☐ No			

BILLING INFORMATION

Preferred method for Invoicing: ☐ Email (default) ☐ Mail	Accts Payable Contact:	Email:	Phone:
PO required? ☐ Yes ☐ No	Job Name/# required? ☐ Yes ☐ No	Monthly Statements required? ☐ Yes ☐ No	

BANK/LENDING REFERENCE

Bank/Lender Name	Account#	Phone#
Contact Name	Type Account: ☐ Savings ☐ Checking ☐ Loan ☐ Line of Credit	

INSURANCE INFORMATION

Insurance Company	Insurance Point of Contact	Email, and Phone
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TRADE REFERENCES

Company, Contact, Email

Company, Contact, Email

Company, Contact, Email

TERMS AND CONDITIONS

Applicant and each individual, shareholder, partner, and member signing as "Applicant" (each such individual, shareholder, partner or member, an "Owner") certify that the information provided in this application ("Application") is accurate and complete as of the date hereof and Applicant and each Owner agree to promptly notify EquipmentShare.com Inc (together with its affiliates and subsidiaries, collectively, "ES") of any change to the information provided or such Applicant or Owner's financial status. Each individual signing this Application on behalf of Applicant, or an Owner expressly authorizes ES and/or its affiliates, agents, designees, assigns or lending sources to investigate Applicant's credit, and to make any credit inquiries that ES deems necessary including an inquiry into Applicant's current and past banks, lending institutions or any other creditors. Applicant authorizes banking institutions, lending institutions, trade references, and other creditors to release and disclose to ES, Applicant's credit history and credit information normally released to a prospective creditor. Applicant releases and waives all claims against EquipmentShare for any act or omission that may occur in verifying the information herein. Applicant understands that EquipmentShare's payment terms are Net 30 unless otherwise agreed to in writing, and agrees to pay all invoices according to these terms. Applicant further understands that all past due accounts are subject to a 1.5% Finance Charge on all invoices 30 days or more past due, which is an annual percentage rate of 18%, and agrees to pay such charges according to these terms along with all costs of collection, including reasonable attorney's fees incurred by EquipmentShare in collecting any past due balance. Applicant expressly consents to EquipmentShare protecting its lien rights including, but not limited to, filing preliminary notices for work done in states where such notices are required. Applicant further agrees to be bound by EquipmentShare's standard form rental contract in use at the time of each rental transaction, the terms and conditions of which are incorporated into this Credit Application in their entirety, regardless of whether Applicant executes such rental contract. Upon Applicant's or Owner's request, ES, and/or its affiliates, agents, designees, assignees, or lending sources, to the extent any of the foregoing requests a credit report in connection with this Application, may advise Applicant or Owner (as applicable) whether a credit report was requested and, if so, the name and address of the credit reporting agency that furnished the report. By signing this Application, Applicant and each Owner signing as "Applicant" direct ES and/or its affiliates, agents, designees and assigns to disclose or otherwise transmit any and all information and documents that ES may obtain, including, without limitation, business or personal credit reports, this Application, and any "personal information" (as defined under the California Consumer Privacy Act or other similar applicable laws, however, personal information or data may be defined thereunder), to other persons that are involved in providing commercial funding and the services related thereto (including, but not limited to, ES's lending sources and its and their third-party service providers), in each case for the purposes of facilitating the provision of commercial funding for Applicant or the ongoing facilitation or administration of any funded transaction. All such personal information shall be collected, stored, disclosed, and used by ES and/or its affiliates in accordance with applicable laws and ES's privacy policy (which can be found at <https://www.equipmentsshare.com/privacy-policy>).

To help the government fight terrorism & money laundering activities, Federal law requires verification and recording of information that identifies each person or commercial entity who opens an account or obtains financing. For this reason, ES or its affiliates or lending sources may ask Applicant and/or each Owner for information such as name, address, date of birth, Social Security, or other Tax Identification Number, and other information that will allow ES or its affiliates or lending sources to identify Applicant and/or each Owner. ES or its affiliates or lending sources may also request additional information or assistance and cooperation with completing and executing other due diligence documents meant to verify individual or company identities and financial status, and Applicant agrees to provide such additional information, assistance, and cooperation.

Notice to Ohio Residents: The Ohio laws against discrimination require that all creditors make credit equally available to all credit-worthy customers, and that credit reporting agencies maintain separate credit histories on each individual upon request. The Ohio civil rights commission administers compliance with this law. Notice to California Residents: A married individual who is an Applicant may apply for a separate account.

Equal Credit Opportunity Act ("ECOA") Notice: If Applicant's application for credit is denied, Applicant has the right to a written statement of the specific reasons for the denial. To obtain the statement, please contact ES at the address noted above (Attn: Legal Department) within 60 days from the date Applicant is notified of the denial. Within 30 days of receiving the request, ES will send a written statement specifying the reasons for the denial. The Federal ECOA prohibits creditors from discriminating against credit applicants on the basis of race, color, religion, national origin, sex, marital status, age (provided that the Applicant has the capacity to enter into a binding contract); because all or part of the Applicant's income derives from any public assistance program; or because the Applicant has in good faith exercised any right under the Consumer Credit Protection Act. The federal agency that administers compliance with this law concerning the creditor is the FTC Regional Office for the region in which ES operates or Federal Trade Commission, Equal Credit Opportunity, Washington, DC 20580.

ES, its agents, designees, assigns or lending sources are not an agent of the Applicants in obtaining financing. ES and its agents, designees, and assigns are not agents, joint venturers, or partners with any lending source that may provide funds in connection with this Application. This application shall be governed by the State Laws of Missouri without regard to its choice of law or conflict of laws provisions or principles, and Applicant hereby waives the application of the laws of any other state in connection with this Application. Applicant and ES agree that any action, suit, or proceeding related to or arising out of this Application shall exclusively be brought in the federal or state courts located in the State of Missouri, and both Applicant and ES expressly submit to the jurisdiction of such courts with respect to any such action, suit or proceeding. This application may be signed in counterparts of which each copy shall constitute together a complete document. If any provision of this Application is found to be unenforceable, such provision will be fully severable from this Application and the remaining provisions of this Application will remain in full force and effect.

By signing below or electronically, the undersigned represents and warrants that (1) Applicant has read this application in its entirety; (2) Applicant has the capacity to enter into a binding contract; (3) the undersigned is authorized to execute this application thereby binding Applicant to the terms and conditions herein (4) the information provided by Applicant is accurate and complete (5) Applicant and each individual signing on behalf of Applicant agree to the Terms and conditions herein. The applicant may choose to sign this Application electronically, and if signing electronically the electronic signature(s) of the signatories, whether digital or encrypted, are intended to authenticate such signatures and have the same force and effect as the use and delivery of manual signatures and give rise to a valid, enforceable, and fully effective agreement to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act or any other similar state laws, acts, or statutes based on the Uniform Electronic Transactions Act.

Signature	Date
Printed Name	Title

GUARANTY

In consideration of the extension of credit to _____ ("Customer"), the undersigned guarantor(s) ("Undersigned") jointly, unconditionally, and irrevocably guarantees to EquipmentShare.com Inc (together with its affiliates and subsidiaries, collectively "EquipmentShare") the full and prompt payment, performance and satisfaction by Customer of each and every one of its obligations to EquipmentShare, whether now in existence or arising on or after the date of this Guaranty whether absolute or contingent, and whether secured or unsecured, together with all fees and charges of whatsoever kind and nature arising therefrom or relating thereto. The Undersigned further agrees to indemnify EquipmentShare and hold it harmless from any loss, cost or expense (including, without limitation, reasonable attorney's fees and other costs of collection) arising from or as a result of any breach by Customer of its obligations to EquipmentShare or any breach by the Undersigned of Undersigned's obligations under this Guaranty.

The Undersigned hereby waives demand for payment under this Guaranty, protest, presentment, any applicable homestead exemption(s), a notice of acceptance of this Guaranty, all set-offs and counterclaims; and all other notices customarily given and/or to which the Undersigned would otherwise be entitled. It is expressly understood that EquipmentShare will not be required to exhaust its legal remedies for recovery against Customer before seeking payment from the Undersigned and that the Undersigned is obligated, absolutely and immediately, to pay any amount owed to EquipmentShare by Customer and/or to perform any obligation due to EquipmentShare by Customer immediately upon Customer's failure to timely pay or perform. This is intended to be, and is, a continuing Guaranty applying to all transactions effected or to be effected, between EquipmentShare and Customer and shall not be revoked by the Undersigned except upon the receipt of written notice via certified mail with proof of delivery by EquipmentShare from the Undersigned, addressed to the attention of EquipmentShare's general counsel, to not enter into further agreements with Customer on the security of this Guaranty. Such revocation will only be effective with respect to any obligations by the Customer arising after the date such written revocation was received by EquipmentShare. This Guaranty is governed by the laws of the State of Missouri, without regard to conflict of laws principles. The undersigned and EquipmentShare agree that any judicial proceeding to resolve claims relating to this Guaranty will be brought to the federal or state courts of Boone County, Missouri or Dallas County, TX. Both the Undersigned and EquipmentShare consent to venue and personal jurisdiction in such courts. The Undersigned further agrees and authorizes EquipmentShare to investigate Undersigned's credit and financial information through any credit bureau or any other reasonable means including direct contact with past and present creditors. The Undersigned has caused this Guaranty to be executed on the date set forth below.

Guarantor's Signature	Guarantor's Name Printed	Date
SSN	Guarantor's Physical Address	